

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                  |                                            |                                                       |                                               |                                 |
|---------------------------------------------------|------------------------------------------------------------------|--------------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Andrew Chiang                    | Team:<br>Team # 7                                                | CCRB Case #:<br>200409370                  | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                  |                                            | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 07/17/2004 2:00 AM  | Location of Incident:<br>the corner of § 87(2)(b) and § 87(2)(b) | 18 Mo. SOL<br>1/17/2006                    | Precinct:<br>77                                       |                                               |                                 |
| Date/Time CV Reported<br>Thu, 09/23/2004 10:35 AM | CV Reported At:<br>CCRB                                          | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Thu, 09/23/2004 7:02 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. POM Richard Pentangelo | 29703  | 927716 | 077 PCT |
| 2. POM Matthew Granahan   | 26635  | 926899 | 077 PCT |

| Officer(s)                 | Allegation                                                                                                 | Investigator Recommendation |
|----------------------------|------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Matthew Granahan   | Abuse: PO Matthew Granahan issued a summons to § 87(2)(b)                                                  | A . Substantiated           |
| B . POM Richard Pentangelo | Abuse: PO Richard Pentangelo issued a summons to § 87(2)(b)                                                | B . Substantiated           |
| C . POM Richard Pentangelo | Discourtesy: PO Richard Pentangelo spoke obscenely to § 87(2)(b)                                           | C . Unsubstantiated         |
| D . POM Richard Pentangelo | Discourtesy: PO Richard Pentangelo gestured obscenely towards § 87(2)(b)                                   | D . Unsubstantiated         |
| E . POM Matthew Granahan   | Off. Language: PO Matthew Granahan made remarks to § 87(2)(b), § 87(2)(b), and § 87(2)(b) based upon race. | E . Unsubstantiated         |
| F . POM Richard Pentangelo | Abuse: PO Richard Pentangelo arrested § 87(2)(b)                                                           | F . Unsubstantiated         |
| G . POM Matthew Granahan   | Abuse: PO Matthew Granahan arrested § 87(2)(b)                                                             | G . Unsubstantiated         |

### Synopsis

On July 17, 2004 at 2:00am § 87(2)(b) and his friends § 87(2)(b) and § 87(2)(b) were standing on a street corner in Brooklyn when they were approached by PO Richard Pentangelo and PO Matthew Granahan. PO Pentangelo issued § 87(2)(b) summonses for § 87(2)(b) disorderly conduct. PO Granahan issued § 87(2)(b) the same two summonses; in addition, he also issued § 87(2)(b) summonses § 87(2)(b). PO Pentangelo and PO Granahan handcuffed § 87(2)(b) and transported him to the stationhouse. § 87(2)(b) filed a complaint at the CCRB on September 23, 2004. Although he admitted to drinking the alcohol, he complained that the disorderly conduct summons he received was baseless. § 87(2)(b) also stated that both officers had exhibited offensive behavior towards him during the incident, and furthermore, arrested § 87(2)(b) out of spite. § 87(2)(g)

Therefore, this investigation recommends that allegations **A** and **B** are *substantiated*. § 87(2)(g)

Therefore, allegations **C** through **G** are recommended to be *unsubstantiated*.

### Summary of Complaint

This case was returned from the CCRB's mediation department on December 13, 2004, after the NYPD determined that PO Pentangelo and PO Granahan were unsuitable candidates for mediation (encl. 17e). § 87(2)(b) was interviewed at the CCRB on December 14, 2004 pursuant to an investigation (encl. 5b-e).

On July 17, 2004 at approximately 2am, § 87(2)(b) was with his friends § 87(2)(b) and § 87(2)(b) on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. They were standing in front of an abandoned commercial building, hanging out. Across the street from the building was a convenience store on one corner, and § 87(2)(b) on another. § 87(2)(b) was drinking from one bottle of beer that he purchased from the convenience store. According to § 87(2)(b) it was his first beer. § 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) did not have beers and had not been drinking. Because it was late, there was no one else on the street except for six people standing outside § 87(2)(b). According to § 87(2)(b) they were drinking as well.

A patrol car approached on § 87(2)(b) and parked in front of § 87(2)(b) (the CCRB identified PO Pentangelo as the driver and PO Granahan as the passenger). PO Pentangelo ordered § 87(2)(b) to approach the vehicle, and asked him, "What do you have behind you?" § 87(2)(b) showed him he had a beer in his hand, but asked PO Pentangelo to give him a break because it was his first beer. PO Pentangelo asked for § 87(2)(b)'s identification. According to § 87(2)(b) PO Pentangelo also called out to § 87(2)(b) and § 87(2)(b) "How come you don't have a beer? I'd like to see you with a beer."

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) waited on the sidewalk while PO Pentangelo wrote a summons for § 87(2)(b). § 87(2)(b) called to the officers, "Why are you bothering § 87(2)(b) Just leave him alone." § 87(2)(b) did not use profanity. § 87(2)(b) asked PO Pentangelo why he did not stop the people outside § 87(2)(b), who were Caucasian. PO Pentangelo responded, "I don't see them. I see you." § 87(2)(b) stated he was upset because he believed PO Pentangelo stopped him because he was Hispanic. § 87(2)(b) did not say anything throughout the incident.

PO Pentangelo called § 87(2)(b) back to the patrol car and issued him two summonses; § 87(2)(b) took the tickets and told PO Pentangelo "Make sure you show up [to court] because I'm going to be there." As § 87(2)(b) walked back to the sidewalk, PO Pentangelo and PO Granahan exited the patrol car and walked towards § 87(2)(b) and his friends.

PO Granahan said to the group, "Andele, andele" § 87(2)(b) stated it means "Get out of here" in Spanish). § 87(2)(b) took issue with these words because he felt it was an offensive racial comment. § 87(2)(b) told PO Granahan, "Why are you saying 'andele?' Don't be a racist. We're speaking to you in good English. There's no reason for you to talk that way." The two officers did not respond, but appeared to "look around" as if to check for other alcoholic containers. As § 87(2)(b) and

his friends started to walk away, § 87(2)(b) said something to the effect of “You guys are messed up” to the officers.

PO Pentangelo said “Fuck you” to § 87(2)(b) and gave him “the finger.” § 87(2)(b) returned the same gesture and also said “Fuck you” to PO Pentangelo. PO Pentangelo and PO Granahan approached § 87(2)(b) grabbed him by his jacket and put him against a gate. The officers handcuffed § 87(2)(b) and took him away in the patrol car. § 87(2)(b) did not interact with either PO Pentangelo or PO Granahan prior or subsequent to this incident.

§ 87(2)(b)

§ 87(2)(b) filed a CCRB complaint on September 23, 2004, because he felt the disorderly conduct summons was unjustified and because he remained upset at PO Granahan’s “andeale” remark.

§ 87(2)(b) stated § 87(2)(b) who was not issued any summonses that day, did not wish to be involved in the investigation. § 87(2)(b) stated he wished to respect § 87(2)(b)’s wishes and did not provide § 87(2)(b)’s address or phone number.

### Results of Investigation

#### Witness Statements

§ 87(2)(b) did not cooperate with the investigative process. On January 5, 2005 § 87(2)(b) did not appear for a scheduled interview. On January 19, 2005, when CCRB investigators appeared at his residence for a scheduled interview, § 87(2)(b) changed his mind, § 87(2)(b) and refused to provide a statement. A total of six messages and three letters have been left with § 87(2)(b)

§ 87(2)(b) was not interviewed for this investigation. Both § 87(2)(b) and § 87(2)(b) stated § 87(2)(b) did not wish to be involved and refused to provide his contact information. A listing for § 87(2)(b) was found on Metrosearch. The resident, § 87(2)(b) (§ 87(2)(b)’s brother-in-law), stated § 87(2)(b) resides at § 87(2)(b), but would not provide a phone number. The two letters sent to that address have not been returned.

On January 19, 2005 a canvass was conducted of § 87(2)(b) and § 87(2)(b). Two witnesses, § 87(2)(b) and § 87(2)(b) were located. § 87(2)(b) and § 87(2)(b) who stated they are friends with § 87(2)(b) agreed to provide a statement (encl. 6a-d). The following is a compilation of their statements.

On July 17, 2004 at approximately 2:00am, § 87(2)(b) and § 87(2)(b) were driving to the convenience store on § 87(2)(b) and § 87(2)(b). When they parked in front of the convenience store, they saw two officers speaking with § 87(2)(b), § 87(2)(b), and § 87(2)(b) across the street. § 87(2)(b) remained inside the car. § 87(2)(b) stepped out to have a better look.

§ 87(2)(b) stated he believed the men had been stopped for drinking in public. § 87(2)(b) stated his friends were standing on the sidewalk and were not blocking people from getting by, but they were “making a little noise.” During this interaction, someone yelled “Get the fuck out of here” at the officers as they were walking back to their patrol car. According to § 87(2)(b) the officers then turned around, put § 87(2)(b) against a wall and handcuffed him. It appeared to § 87(2)(b) that the officers believed § 87(2)(b) to have made the remark. However, § 87(2)(b) stated that it was a bystander, not § 87(2)(b) who made the remark.

#### Officer Statements

PO Granahan was interviewed at the CCRB on January 3, 2005. His relevant memo book entries reads: “0202 – C-summons, § 87(2)(b); 0202 – C summons, disorderly conduct; 0215 – one under corner of § 87(2)(b) and § 87(2)(b) (encl. 8a-c).” PO Granahan provided the summonses he issued in connection with this incident (encl. 7a-d). Summonses § 87(2)(b) and § 87(2)(b) were issued to § 87(2)(b) at 0200 hours for § 87(2)(b) “discon (subsection 5),” respectively. Summonses § 87(2)(b) and § 87(2)(b) were issued to § 87(2)(b) at 0215 hours § 87(2)(b). The following is a summary of his interview statement (encl. 9a-b).

On July 17, 2004 at approximately 2:00am, PO Granahan and PO Pentangelo drove towards the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn while on routine patrol. While on § 87(2)(b) PO Granahan noticed a group of three males (§ 87(2)(b), § 87(2)(b), and § 87(2)(b) standing on the corner of the intersection. There was nobody else at the corner where the men were standing. PO Granahan stated they were “just talking” and “being loud” but were not doing anything else that was alarming. PO Granahan stated each male was also holding an open container of alcohol. At that point, PO Granahan stated he and PO Pentangelo made the determination that each of the men would be issued summonses for disorderly conduct and having an open alcohol container. PO Granahan stated they decided to issue the disorderly conduct summonses because the group was “right in the middle of the sidewalk, blocking traffic.”<sup>1</sup> By blocking traffic, PO Granahan stated the group was standing so that anyone crossing the street would potentially have to go around them. However, when asked if he actually observed any pedestrians having trouble getting by, he stated, “No, not at that time.” He stated, “There were people around, but I didn’t see anything like that.” Later in the interview, he admitted he didn’t actually see any other people in the area. PO Granahan did not at any time ask these men to move. PO Granahan stated the sole fact that the men were standing on a street corner warranted a disorderly conduct summons.

The officers parked their patrol car in front of the corner and exited. Neither he nor PO Pentangelo exchanged words with the men before they exited the vehicle. The officers approached the group and asked them all for identification. Each one provided it. However, when the officers informed the men that that they would be issued summonses, § 87(2)(b) protested, asking “why are you harassing us?” PO Granahan stated he wrote § 87(2)(b) two summonses: one, § 87(2)(b) the second, for disorderly conduct. PO Granahan did not issue summonses to anyone else.

After issuing the summonses, PO Granahan stated § 87(2)(b) was particularly unhappy and cursed at the officers. He did not remember what profanity § 87(2)(b) used. Neither PO Granahan or PO Pentangelo responded with profanity. PO Granahan stated he and PO Pentangelo ordered the men to throw away the alcohol and leave. He did not use the word “Andele.” Because the men refused to leave, he and PO Pentangelo then asked § 87(2)(b), § 87(2)(b), and § 87(2)(b) for their identifications again. § 87(2)(b) refused, spit on the floor, and walked away.

PO Granahan again asked for § 87(2)(b) identification. PO Granahan stated he wanted § 87(2)(b) identification so that § 87(2)(b) would not walk away while PO Granahan wrote him another summons. Despite § 87(2)(b) and § 87(2)(b) s attempts to get him to comply, § 87(2)(b) refused. PO Granahan and PO Pentangelo then placed § 87(2)(b) against a wall and handcuffed him. The officers took § 87(2)(b) to the precinct where PO Granahan issued him another two summonses § 87(2)(b).

PO Pentangelo was interviewed at the CCRB on January 11, 2005. His memo book entry for the incident reads, “0200 - ...Discon c/o § 87(2)(b) and § 87(2)(b) Deft – Male Hispanic § 87(2)(b) At [time and place of occurrence] the deft was observed in possession of an open 12oz. Bottle of Corona Beer in full public view of passing pedestrians and motorists. Deft did also with intent to cause public inconvenience engage in FURHOOD by obstructing pedestrian traffic with two others at location (encl. 11a-d).” PO Pentangelo provided the summonses he issued in connection with this incident (encl. 10a-d). PO Pentangelo issued summonses § 87(2)(b) and § 87(2)(b) to § 87(2)(b) at 0200 hours for § 87(2)(b) “discon (subsection 5),” respectively. The following is a summary of his interview statement (encl. 12a-b).

On July 17, 2004 PO Pentangelo and PO Granahan were on routine patrol when they made a left turn onto § 87(2)(b) and saw three males - § 87(2)(b), § 87(2)(b), and § 87(2)(b) - standing on the corner of § 87(2)(b) and § 87(2)(b) one block down. PO Pentangelo saw somebody walking south on § 87(2)(b) who had to “veer towards the streetside” to go around the three males. At this point, PO Pentangelo decided each of the males were guilty of disorderly conduct. PO Pentangelo stated, “The disorderly conduct was pretty much decided when you have three people standing on a corner causing another pedestrian to have to walk around them, totally aloof to everything that was going on around them.” As the officers drove closer to them, they saw that each male had a beer in hand. When the individuals noticed the patrol car, they hid the beers behind their backs. At this point, the officers decided

---

<sup>1</sup> PO Granahan did not state that the fact that the men were being noisy constituted disorderly conduct until PBA Attorney Brian Ahern asked PO Granahan whether the noise contributed to his decision to issue the disorderly conduct summonses.

to issue them summonses § 87(2)(b). PO Pentangelo stated the men were being noisy but did not appear to be intoxicated.

PO Pentangelo and PO Granahan pulled up in front of the men and exited the patrol car. PO Pentangelo stated the men began to apologize for having the beers. PO Pentangelo asked for § 87(2)(b)'s identification. § 87(2)(b) provided it. PO Pentangelo did not ask for anyone else's identification. PO Pentangelo stated once the men realized PO Pentangelo was writing a summons, he stated the three men began to curse at the officers. PO Pentangelo stated § 87(2)(b) called him "cracker" and he heard someone say the word "fuck." Although he stated each of the males had a beer and were in violation of disorderly conduct, PO Pentangelo stated he issued summonses only to § 87(2)(b).

After issuing the summonses, PO Pentangelo and PO Granahan instructed the men to leave the area and returned to the patrol car. At that point, PO Pentangelo stated he heard § 87(2)(b) say "This is fucking bullshit." PO Pentangelo saw § 87(2)(b) grab his own groin and spit in direction of the patrol car.

The officers exited the patrol car. PO Granahan asked § 87(2)(b) several times for his identification in order to issue him a summons § 87(2)(b). PO Pentangelo added, "If we really wanted to play the game, we could have issued him a summons for cursing." § 87(2)(b) refused despite his friends' attempts to convince him otherwise." The officers placed § 87(2)(b) against the wall, handcuffed him, and transported him to the stationhouse. PO Pentangelo denied using profanity or making obscene gestures at any time during the incident.

#### Incident Photos

Enclosure 13a depicts the southeast corner of § 87(2)(b) and § 87(2)(b) (across from § 87(2)(b)) where § 87(2)(b), § 87(2)(b), and § 87(2)(b) were standing.

Enclosure 13b depicts the southwest corner, where the convenience store is located.

Enclosure 13c depicts the northeast corner, where § 87(2)(b) is located.

#### Summons Dispositions

§ 87(2)(b)

§ 87(2)(b)

#### Civilian CCRB History

§ 87(2)(b) has not filed any previous complaints with the CCRB (encl. 3).

#### Civilian Criminal Records

A BADS search starting January 1, 1990 reveals no arrests for § 87(2)(b).

#### Officer CCRB History

Neither PO Pentangelo or PO Granahan have substantiated allegations in their histories (encl. 1-2).

### **Conclusion and Recommendations**

#### Undisputed Facts

The following facts are not in dispute. § 87(2)(b), § 87(2)(b), and § 87(2)(b) were standing on the southeast corner of § 87(2)(b) and § 87(2)(b) at 2am, where there are apartment buildings, a grocery store, and a bar located in the vicinity of the intersection. § 87(2)(b) was drinking a beer. PO Pentangelo and PO Granahan approached the individuals in a patrol car and asked § 87(2)(b) for his identification. § 87(2)(b) complied; however, he and § 87(2)(b) verbally expressed their displeasure at having been stopped. PO Pentangelo issued § 87(2)(b) two summonses; one, § 87(2)(b), the other, for disorderly conduct. PO Granahan issued § 87(2)(b) the same. § 87(2)(b)

§ 87(2)(b) was not issued a summons. PO Granahan and PO Pentangelo handcuffed § 87(2)(b) and transported him to the stationhouse, where he was released with additional summonses § 87(2)(b)

#### Disputed Facts

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

#### Credibility Analysis

PO Pentangelo and PO Granahan both stated they stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b) because they were blocking pedestrian traffic and decided to issue all of them disorderly conduct summonses for that reason. § 87(2)(g) The time was 2am, the men were in a residential area, and were standing on a wide street corner (see encl.). § 87(2)(g)

upon further questioning, PO Granahan admitted that he didn't actually see any pedestrians walking where the men were standing, and did not see them disrupt anybody's travel. § 87(2)(b) a witness, stated that the men were "making a little noise." § 87(2)(g)

#### Determination of Facts

§ 87(2)(b)

§ 87(2)(g)

PO Pentangelo claimed § 87(2)(b) called him a "cracker." § 87(2)(g)

PO Granahan stated § 87(2)(b) cursed at the officers. § 87(2)(b) admitted § 87(2)(b) said, "Fuck you." These testimonies indicate that, in the exchange that occurred, § 87(2)(b) and § 87(2)(b) were rude and discourteous towards the officers.

Second, it has been established that § 87(2)(b) was not issued any summonses. § 87(2)(b) stated § 87(2)(b) was the only individual that did not talk back to the officers. Neither officer recalled interacting with § 87(2)(b). Not only does this further discredit the officers' story that the three men were being disorderly (one would expect that § 87(2)(b) would have been issued a summons as well), but it establishes that PO Pentangelo and PO Granahan issued disorderly conduct summons only to those individuals that had been disrespectful towards them. Neither officer could account for why § 87(2)(b) was not given a summons.

This investigation therefore finds that PO Pentangelo and PO Granahan issued the disorderly conduct summonses specifically in response to § 87(2)(b) and § 87(2)(b) untoward comments. Because PO Pentangelo and PO Granahan provided an unfounded account of § 87(2)(b) and § 87(2)(b) behavior, this investigation also finds that the officers understood they did not have the proper justification to issue the disorderly conduct summonses. The investigation finds that the issuance of those summonses were baseless and retaliatory.

While it is true that § 87(2)(b) pled guilty to the disorderly conduct, he maintained throughout the investigation that he was never in violation of it. § 87(2)(b) also provided a reasonable explanation for his action - he stated a court attendant informed him that pleading guilty on both his summonses would make his court process easier. This claim is supported by the fact that § 87(2)(b) did not pay a fine for

the disorderly conduct summons, the court disposition of which is sealed. § 87(2)(b) who received an “ACD” on for his disorderly conduct charge, was not available to provide a statement regarding it.

**Allegation A: PO Richard Pentangelo issued § 87(2)(b) a summons for disorderly conduct.**  
**Allegation B: PO Matthew Granahan issued § 87(2)(b) a summons for disorderly conduct.**

According to New York State Penal Law statute 240.20, “A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof: (1) He engages in fighting or in violent, tumultuous or threatening behavior; or (2) He makes unreasonable noise; or (3) In a public place, he uses abusive or obscene language, or makes an obscene gesture; or (4) Without lawful authority, he disturbs any lawful assembly or meeting of persons; or (5) He obstructs vehicular or pedestrian traffic; or (6) He congregates with other persons in a public place and refuses to comply with a lawful order to disperse; or (7) He create a hazardous or physically offensive condition by any act with serves no legitimate purpose.” Although both PO Pentangelo and PO Granahan both stated § 87(2)(b) and § 87(2)(b) were noisy and used profanity towards the officers, there is no evidence that they had caused public alarm or annoyance. There were no complaints about their behavior. There was no crowd that had gathered. Indeed, the officers did not even cite those reasons for issuing the summonses. Furthermore, there was certainly no intent to cause public alarm on the part of § 87(2)(b) and § 87(2)(b) who were essentially involved in a private dispute with PO Pentangelo and PO Granahan. Judge Faye Lewis made it very clear in her decision in PD v Celis that “even speech that is abusive or obscene is not subject to criminal prosecution unless it is made with the specific intent to cause public annoyance or alarm.”

PD v Dowd established that an arrest (or the issuance of a criminal summons) without probable cause is sanctionable as misconduct if the arresting or issuing officer acted “with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper.” This investigation has found that PO Pentangelo and PO Granahan issued the disorderly conduct summonses in retaliation for § 87(2)(b) and § 87(2)(b) discourteous comments, understood that the summonses they issued were improper, and falsely provided a story about pedestrian traffic being disrupted in order to explain their actions. Furthermore, the OATH tribunal has consistently held that an arrest made in retaliation for an offensive comment still arises to sanctionable misconduct (See the following cases involving arrests for disorderly conduct: PD v Bernandini, motorist arrested for calling officer “fucking asshole;” PD v Queally, civilian stated officers were “acting like assholes;” PD v Zabawski, motorist arrested for calling officer “white trash”). For these reasons, this investigation recommends allegations **A** and **B** be *substantiated*.

**Allegation C: PO Richard Pentangelo spoke obscenely to § 87(2)(b)**  
**Allegation D: PO Richard Pentangelo gestured obscenely to § 87(2)(b)**  
**Allegation E: PO Matthew Granahan made comments to § 87(2)(b), § 87(2)(b), and § 87(2)(b) based on race.**

§ 87(2)(g) this investigation recommends that allegations **C**, **D**, and **E** be *unsubstantiated*.

**Allegation F: PO Rihcard Pentangelo arrested § 87(2)(b)**  
**Allegation G: PO Matthew Granahan arrested § 87(2)(b)**

§ 87(2)(b) alleged that § 87(2)(b) was arrested because he said “fuck you” to the officers. PO Pentangelo and PO Granahan claimed that they arrested § 87(2)(b) because he refused to provide his identification. § 87(2)(g)

§ 87(2)(g) The investigation recommends allegations **F** and **G** to be *unsubstantiated*.

|               |       |
|---------------|-------|
| Investigator: | Date: |
| Supervisor:   | Date: |
| Reviewed by:  | Date: |

Reviewed by:

Date: